

**BEFORE THE  
FEDERAL MARITIME COMMISSION  
Office of Administrative Law Judges**

**DOCKET NO. 25-24**

**SOUTHERN INTERNATIONAL CO., LTD.,**  
Complainant,

v.

**DAYNAMEZ GROUP OF COMPANIES LLC,**  
Respondent.

**COMPLAINANT'S RENEWED MOTION FOR LEAVE TO ACCEPT LATE-FILED  
CORRECTED JOINT STATUS REPORT, TO DEEM THE APRIL 14, 2026 CADRS  
PRELIMINARY CONFERENCE SATISFIED, AND FOR RELATED RELIEF**

Complainant Southern International Co., Ltd. ("SIC" or "Complainant"), pursuant to 46 C.F.R. §§ 502.64, 502.69, 502.71, 502.102(b), and 502.141, the Initial Order served September 5, 2025, and the Order served April 16, 2026, respectfully moves for an order: (1) accepting the attached fully executed Corrected Joint Status Report with Proposed Schedule as a late filing; (2) deeming the April 14, 2026 CADRS preliminary conference satisfied for purposes of the Initial Order and 46 C.F.R. § 502.64; (3) deeming the attached fully executed Corrected Joint Status Report to supersede and replace the version of the Joint Status Report filed on April 14, 2026; (4) approving the proposed schedule set forth in the attached Corrected Joint Status Report, including such adjustment of the Initial Decision due date and related case-management dates as the Presiding Officer deems appropriate, or otherwise entering a modified scheduling order consistent with the Commission's Rules; and (5) granting such other and further relief as the Presiding Officer deems just and proper.

In support, SIC states as follows:

**I. INTRODUCTION**

1. This renewed motion is filed to cure the specific defects identified in the Administrative Law Judge's Order served April 16, 2026 denying without prejudice Complainant's prior Motion for Limited Enlargement of Time and Request to Deem CADRS Preliminary Conference Timely.

2. SIC does not seek reconsideration of that Order and does not dispute that the prior motion was procedurally deficient.

3. Instead, SIC now seeks relief under 46 C.F.R. § 502.102(b), accompanied by the operative document at issue: a fully executed Corrected Joint Status Report with Proposed Schedule signed by both SIC and Respondent's counsel.



4. As set forth below and in the accompanying declaration, the delay at issue was one day; the CADRS preliminary conference actually occurred on April 14, 2026 with participation by both parties; the parties substantively conferred regarding the contents of the Joint Status Report before the April 13, 2026 deadline; and Respondent's counsel later stated that he had no issue with timeliness and executed the Corrected Joint Status Report.

## **II. PROCEDURAL BACKGROUND**

5. On March 16, 2026, the Administrative Law Judge denied Respondent's Motion to Dismiss the Second Amended Complaint and ordered Respondent to file an answer within ten days of service of that Order. The Administrative Law Judge further ordered the parties to comply with the Initial Order, including filing a joint status report with proposed schedule within fifteen days of service of the answer.

6. Respondent served its Verified Answer, Affirmative Defenses, and Counterclaim on March 27, 2026.

7. Under the Initial Order and Rule 101, the Joint Status Report and CADRS preliminary conference were due no later than Monday, April 13, 2026.

8. SIC exchanged its initial disclosures on April 3, 2026, within seven days of service of the Answer, and Respondent exchanged its initial disclosures on April 4, 2026.

9. On April 3, 2026, SIC sent Respondent's counsel an initial draft of the Joint Status Report for review and requested comments.

10. On April 10, 2026, Respondent's counsel advised that he and his client were reviewing SIC's proposal, acknowledged that the filing was due on Monday because April 11 fell on a Saturday, and stated that he would get back to SIC.

11. Respondent thereafter provided revisions to the draft Joint Status Report, including a further revised draft transmitted on April 13, 2026.

12. Separately, SIC contacted CADRS on April 10, 2026 to schedule the mandatory preliminary conference pursuant to 46 C.F.R. § 502.64(a).

13. The CADRS preliminary conference was scheduled for April 14, 2026 at 9:00 a.m. Washington, D.C. time, and Respondent's counsel confirmed that he and Respondent's representative would participate. SIC also confirmed its attendance.

14. The CADRS preliminary conference was held on April 14, 2026.

15. On April 14, 2026, SIC filed the Joint Status Report and its prior motion.

16. On April 16, 2026, the Administrative Law Judge denied the prior motion without prejudice because, among other things, the motion did not seek relief as to the deadline to file a fully

executed Joint Status Report and did not satisfy 46 C.F.R. § 502.71(a) by properly stating whether the specific relief sought was opposed.

17. On April 19, 2026, SIC renewed conferral with Respondent pursuant to 46 C.F.R. § 502.71(a), specifically asking Respondent's position regarding: (a) deeming the April 14, 2026 CADRS preliminary conference satisfied; (b) accepting the Joint Status Report filed on April 14, 2026 as a late filing or, alternatively, accepting a corrected Joint Status Report out of time; (c) executing a corrected Joint Status Report; and (d) identifying any disputed scheduling items.

18. Respondent's counsel replied that he had "no issue with the timeliness."

19. SIC then continued working with Respondent's counsel to finalize a corrected Joint Status Report. On April 20, 2026, SIC sent the final corrected draft in editable Word format for signature after a technical issue arose with an earlier transmitted version.

20. On April 21, 2026, Respondent's counsel returned the signed Corrected Joint Status Report and confirmed that the last version was acceptable.

21. The fully executed Corrected Joint Status Report is attached hereto as Exhibit 1 and is the operative document SIC now seeks leave to file and have accepted.

### **III. APPLICABLE STANDARD**

22. Under 46 C.F.R. § 502.102(b), motions submitted after the scheduled filing date are considered requests to accept a late filing, must be accompanied by the document, and will only be considered when exceptional circumstances are shown or as justice may require.

23. Under 46 C.F.R. § 502.69(e), written motions must clearly state the relief sought, the principal authority relied upon, and the facts constituting the grounds for the requested relief.

24. Under 46 C.F.R. § 502.71(a), before filing a non-dispositive motion, the parties must attempt to discuss the anticipated motion in a good-faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The moving party must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.

25. Under 46 C.F.R. § 502.64(a), parties must participate in a CADRS preliminary conference, and under 46 C.F.R. § 502.141(g)-(h), discovery must be completed within 150 days of service of the answer and the parties must confer regarding the schedule.

### **IV. ARGUMENT**

A. This renewed motion cures the defects identified in the April 16, 2026 Order.

26. Unlike SIC's prior motion, this renewed motion expressly seeks relief as to both defects identified by the Administrative Law Judge: (1) the late CADRS preliminary conference; and (2) the late filing of a fully executed Joint Status Report.

27. This renewed motion is also accompanied by the operative document at issue—the fully executed Corrected Joint Status Report—consistent with Rule 102(b).

28. In addition, this renewed motion includes a current Rule 71(a) conferral statement regarding the specific relief sought herein.

**B. Justice requires acceptance of the attached Corrected Joint Status Report as a late filing.**

29. The delay at issue was one day.

30. The CADRS preliminary conference was not skipped or ignored; it actually occurred on April 14, 2026 with participation by both parties.

31. The schedule reflected in the attached Corrected Joint Status Report was not created unilaterally after the deadline. SIC circulated a draft well before the deadline, Respondent reviewed the proposed schedule, and Respondent sent revisions through April 13, 2026.

32. The record therefore shows that the original defect was not a complete failure to confer, but rather a failure to complete the final ministerial steps of formal execution and proper motion practice before the deadline.

33. Acceptance of the attached Corrected Joint Status Report will not unfairly prejudice Respondent. Respondent participated in the CADRS conference, exchanged initial disclosures, reviewed and revised the proposed schedule, stated that he had no issue with timeliness, and then executed the corrected Joint Status Report.

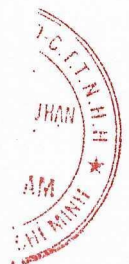
34. Granting this motion will promote orderly case management by providing the Presiding Officer with a fully executed operative Joint Status Report and proposed schedule, thereby allowing the case to proceed on the merits without further procedural ambiguity.

**C. The Presiding Officer should deem the attached Corrected Joint Status Report the operative Joint Status Report and deem the April 14, 2026 CADRS preliminary conference satisfied.**

35. SIC respectfully requests that the Presiding Officer accept the attached fully executed Corrected Joint Status Report as a late filing under Rule 102(b) and deem it to supersede and replace the version of the Joint Status Report filed on April 14, 2026.

36. SIC further requests that the Presiding Officer deem the CADRS preliminary conference conducted on April 14, 2026 satisfied for purposes of the Initial Order and Rule 64.

37. Because the attached Corrected Joint Status Report reflects the parties' final agreed schedule and bears Respondent's execution, SIC respectfully requests that the Presiding Officer approve the proposed schedule set forth therein, including such adjustment to the Initial Decision due



date and related case-management dates as the Presiding Officer deems appropriate, or otherwise enter a modified scheduling order consistent with the Commission's Rules.

**D. SIC acts in good faith.**

38. SIC recognizes that the prior motion should have been framed from the outset as a request under Rule 102(b), should have expressly addressed the fully executed Joint Status Report filing defect, and should have more clearly stated Respondent's position on the specific relief sought.

39. SIC files this renewed motion in good faith to cure those defects and to ensure that the case proceeds in compliance with the Administrative Law Judge's Orders and the Commission's Rules.

**V. RULE 71(a) CONFERRAL**

40. On April 19, 2026, SIC conferred with Respondent by email regarding the specific relief sought in this motion. SIC asked Respondent to state its position separately as to: (a) whether Respondent opposed deeming the April 14, 2026 CADRS preliminary conference satisfied; (b) whether Respondent opposed acceptance of the Joint Status Report filed on April 14, 2026 as a late filing or, alternatively, acceptance of a corrected Joint Status Report out of time; (c) whether Respondent would execute the corrected Joint Status Report; and (d) whether Respondent contended that any scheduling item remained disputed.

41. Respondent's counsel replied that he had no issue with timeliness. SIC then provided the final corrected draft for signature, and Respondent's counsel executed and returned the Corrected Joint Status Report. In light of that response and execution, SIC understands this renewed motion to be unopposed.

**VI. RELIEF REQUESTED**

WHEREFORE, Complainant respectfully requests that the Presiding Officer enter an order:

- a. Accepting the attached Corrected Joint Status Report with Proposed Schedule as a late filing pursuant to 46 C.F.R. § 502.102(b);
- b. Deeming the attached Corrected Joint Status Report with Proposed Schedule to supersede and replace the version of the Joint Status Report filed on April 14, 2026;
- c. Deeming the April 14, 2026 CADRS preliminary conference satisfied for purposes of the Initial Order and 46 C.F.R. § 502.64;
- d. Approving the proposed schedule set forth in the attached Corrected Joint Status Report, including such adjustment of the Initial Decision due date and related case-management dates as the Presiding Officer deems appropriate, or otherwise entering a modified scheduling order consistent with the Commission's Rules; and
- e. Granting such other and further relief as the Presiding Officer deems just and proper.

A proposed order is attached hereto.

Respectfully submitted,

**SOUTHERN INTERNATIONAL CO., LTD.**

By: \_\_\_\_\_  
**Nguyen Tien Phuong**

Director

Southern International Co., Ltd.

OTI Organization No. 033811

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Dated: Apr 21, 2026



**Giám Đốc**

*Nguyễn Tiên Phương*

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## CERTIFICATE OF SERVICE

I certify that on this 21<sup>st</sup> day of April, 2026, a true and correct copy of the foregoing Complainant's Renewed Motion, together with all attachments and exhibits thereto, including the Declaration of Nguyen Tien Phuong, the Corrected Joint Status Report with Proposed Schedule, and supporting email exhibits, was served by electronic mail upon all parties of record and filed with the Secretary, Federal Maritime Commission, with courtesy copies to judges@fmc.gov, in accordance with the Commission's Rules and the Initial Order.

### SOUTHERN INTERNATIONAL CO., LTD.

By: \_\_\_\_\_  
**Nguyen Tien Phuong**

Director

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**Giám Đốc**  
*Nguyễn Tiến Phương*



## Table of Exhibit

| Exhibit |     | Time                             | Description                                                                                                                         |
|---------|-----|----------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| 1       |     |                                  | Joint Status Report with Proposed Schedule                                                                                          |
| 2       | 2.1 | Sunday, April 19, 2026 9:14 PM   | SIC sent Daynamez a conferral email attached the Draft Joint Status Report ("JSR")                                                  |
|         | 2.2 | Sunday, April 19, 2026 10:05 PM  | Daynamez confirmed that they would sign the JSR                                                                                     |
|         | 2.3 | Monday, April 20, 2026 5:47 PM   | SIC reinformed to Daynamez that the deadline was on Tuesday                                                                         |
|         | 2.4 | Monday, April 20, 2026 8:34 PM   | Daynamez sent their first reviewed JSR but SIC cannot open it                                                                       |
|         | 2.5 | Monday, April 20, 2026 10:27 AM  | SIC requested Daynamez to send it under Word file to easily open it.                                                                |
|         | 2.6 | Monday, April 20, 2026 9:58 PM   | Daynamez resent their first reviewed JSR under PDF File                                                                             |
|         | 2.7 | Monday, April 20, 2026 10:11 PM  | SIC changed the time line in the Draft JSR to match Daynamez requirements, and reminded Daynamez that Tuesday would be the deadline |
|         | 2.8 | Tuesday, April 21, 2026 12:26 AM | Daynamez sent their final signed JSR.                                                                                               |